

IN THE SUPREME COURT OF PAKISTAN
(Original Jurisdiction)

PRESENT:

Mr. Justice Umar Ata Bandial, CJ
Mr. Justice Ijaz ul Ahsan
Mr. Justice Munib Akhtar
Mr. Justice Yahya Afridi
Mr. Justice Sayyed Mazahar Ali Akbar Naqvi
Mrs. Justice Ayesha A. Malik

Constitution Petition Nos.24 to 28 & 30 of 2023

(Trials of Civilian under the Army Act, 1952 is violative of the Constitution)

And

C.M. Appeal No. 80 of 2023 in Const. Petition Nil of 2023

(Declaration of trial of civilians under the Army Act, 1952 as unconstitutional, void and of no legal effect.)

Jawwad S. Khawaja

(in Const.P.24/2023)

Aitzaz Ahsan

(in Const.P.25/2023)

Karamat Ali and others

(in Const.P.26/2023)

Zaman Khan Vardag

(in Const.P.27/2023)

Junaid Razzaq

(in Const.P.28/2023)

Supreme Court Bar Association of Pakistan

(in Const.P.30/2023)

Imran Ahmed Khan Niazi

(in C.M. Appeal 80/2023)

Petitioner(s)

Versus

Federation of Pakistan, etc.

(in Const.Ps.24 & 27/2023)

Federation of Pakistan through the
Secretary, Ministry of Law and Justice,
Islamabad and others

(in Const.Ps.25-26, 28 & 30/2023)

Federation of Pakistan through Ministry of
Defence through its Secretary and others

(in C.M. Appeal 80/2023)

...Respondent(s)

- For the Petitioner(s) : Kh. Ahmad Hosain, ASC
(in Const.P.24/2023)
- Sardar Muhammad Latif Khan Khosa,
Sr. ASC
a/w Mr. Aitzaz Ahsan, Sr. ASC
(in Const.P.25/2023)
- Mr. Faisal Siddiqi, ASC
(in Const.P.26/2023)
- Mr. Zaman Khan Vardag, in-person
(in Const.P.27/2023) (VL Lahore)
- Mr. Salman Akram Raja, ASC
(in Const.P.28/2023)
- Mr. Abid S. Zuberi, ASC
(President, SCBAP)
Mr. Shakeel-ur-Rehman, ASC
(VP, SCBAP)
Mr. Agha M. Ali, Adv
(VL Karachi) (in Const.P.30/2023)
- Mr. Shoaib Shaheen, ASC
Mr. Ajmal Ghaffar Toor, ASC
Syed Rifaqat Hussain Shah, AOR
(in C.M. Appeal 80/23)
- For the Federation : Mr. Mansoor Usman Awan,
Attorney General for Pakistan
Ch. Aamir Rehman, Addl. AG
- For Govt.
of Balochistan : Mr. Muhammad Ayaz Swati, Addl. AG
- For Govt. of KP : Mr. Sultan Mazhar Sher Khan, Addl. AG
- For Govt. of Punjab : Mr. Wasim Mumtaz Malik, Addl. AG
Mr. Sana Ullah Zahid, Addl. AG
- For Govt. of Sindh : Mr. Saif Ullah, Addl. AG
(VL Karachi)
- For Imran Ahmed Khan : Mr. Uzair Karamat Bhandari, ASC
Niazi (Respondent No.9
in Const P No.25/2023) (VL Lahore)

For Rana Sanaullah : Mr. Shah Khawar, ASC
(Respondent No.10 in
Const P No.25/2023)

For Khawaja Muhammad : Nemo
Asif (Respondent No.11
in Const P No.25/2023)

For Muhammad Shehbaz : Nemo
Sharif (Respondent No.12
in Const P No.25/2023)

For other respondent(s) : Nemo

Date of Hearing : 03.08.2023

ORDER

The learned Attorney General has continued with his submissions today. The matter is partly heard. He has reiterated commitments made on 21.07.2023 and recorded in the order of that date. At the end of the hearing today, he on instructions from the concerned quarters informed the Court that the matter of providing an appeal on facts and law against conviction by a court martial is under serious consideration. Seeks further time in this regard.

2. He has on previous occasions already stated at the Bar, on instructions from the Federal Government, that there will be no trials of the persons in military custody without informing the Court. Today the learned Attorney General has repeated that assurance on instructions specifically obtained from the highest military authorities under the Army Act. We are confident that this commitment will be adhered to and trials shall not commence without informing the Court. The learned Attorney

General for this purpose shall first inform the Court by a statement made at the Bar on a date of hearing fixed in these petitions. The Court, after hearing the parties, may thereupon make any order as is deemed appropriate.

3. Relist on availability of the Bench.

Sd/-
Chief Justice

Sd/-
Judge

Sd/-
Judge

Sd/-
Judge

Sd/-
Judge

Sd/-
Judge

Islamabad
03.08.2023